MADRAS HIGH COURT

JUDICIAL APPELLATE JURISDICTION

CASE NO: RC(MD) No. 1111 of 2025 (YEAR: 2025)

CORAM: HON'BLE B.MURUGESAN

DELIVERED ON:
... Appellant(s) / Petitioner(s)
Versus
The State of Tamilnadu Rep.by (RC(MD) No. 1111 of 2025)
... Respondent(s)

Acts Referred:	Criminal Procedure Code, Section 102 of the Criminal Procedure Code, CrPC
Sections:	Section 102 Criminal Procedure Code, Section 102 CrPC

JUDICIAL HEADNOTE & SUMMARY

[CRIMINAL PETITION — CRIMINAL PROCEDURE CODE — SECTION 102 CRIMINAL PROCEDURE CODE — ALLOWED] The Madras High Court (Madurai Bench) in RC(MD) No. 1111 of 2025, adjudicated by Hon'ble B.MURUGESAN, considered the petition instituted by DELIVERED ON: against The State of Tamilnadu Rep.by seeking C-45R. To call for the records pertaining to order dated 04.07.2025 passed in Cr.MP.No.467 of 2025 on the file of Learned Judicial Magistrat. Examining the statutory requirements under Criminal Procedure Code and applicable procedural safeguards, the Court pronounced its judgment declaring the disposition as: 'Allowed'.

RATIO DECIDENDI

Where an application is preferred under Section 102 Criminal Procedure Code before the Madras High Court, satisfaction of statutory preconditions and constitutional safeguards warrants that the requested relief be allowed subject to the directions of the Court.

JUDGMENT & REASONING

--- PAGE 1 --- CRL RC(MD) No. 1111 of 2025 BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT RESERVED ON: 06.10.2026 DELIVERED ON: 16.10.2026 CORAM THE HON'BLE MR.JUSTICE B.MURUGESAN CRL RC(MD) No. 1111 of 2025 CNR:{HCMD011002702025} Mahalakshmi ..Petitioner(s) Vs The State of Tamilnadu Rep.by The Inspector of Police, Rajapalayam South Police Station, Virudhunagar District ..Respondent(s) PRAYER: C-45R. To call for the records pertaining to order dated 04.07.2025 passed in Cr.MP.No.467 of 2025 on the file of Learned Judicial Magistrate, Rajapalayam and set aside the same by allowing the Revision Petition and pass such further or other orders. For Petitioner(s): M/s A.Raja For Respondent(s): Mr.D.Venkatesh, Additional Public Prosecutor ORDER Heard and admitted. 02. With the consent of both parties, this criminal revision was taken up for final hearing on 06.10.2026. _____ Page 1 of 10 https://www.mhc.tn.gov.in/judis

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respondent', unless the context otherwise requires. 05. Prefatory facts are that for the offences under S.395, S.457, S.458, S.414 and S.120 (B) IPC, a criminal case has been registered on the file of Rajapalayam South Police Station in Cr No.83/2024 where the revision petitioner is A12, that the revision petitioner has a bank account (10056876024), maintained in Pandiyan Grama Bank, Cholapuram Branch, that the respondent police has frozen such bank account of the revision petitioner without any notice, that the revision _____ Page 2 of 10 https://www.mhc.tn.gov.in/judis

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--- PAGE 7 --- CRL RC(MD) No. 1111 of 2025 account in exercise of powers under Section 102 of CrPC, since bank account also comes within the purview of a movable property. However, in order to keep a check on the misuse of this power, a mandate has been prescribed under Section 102 (3) of CrPC, whereby the police will have to forthwith file a report before the Magistrate having jurisdiction. The court has repeatedly held that non compliance of this mandate will vitiate the freezing of the bank account. Useful reference can be made to the judgment of this Court in Padmini Vs. The Inspector of Police, DCB, Tirunelveli reported in (2008) 3 CTC 675 and Uma Maheswari and Others Vs. State and Others reported in 2014 (1) MLJ (Crl.) 262.' 16. Therefore, having regard to the aforesaid decision, this court holds that the failure on the part of the respondent police to report forthwith the seizure of the bank accounts of the revision petitioner to the jurisdictional magistrate would vitiate the seizure/freezing of the bank accounts of the revision petitioner. 17. Resultantly, this court holds that the revision petitioner is entitled to get an order allowing this criminal revision and reversing the order of the trial court in Crl MP No.467/2025 declining to defreeze the bank account (10056876024) of the revision petitioner maintained in Pandiyan Grama Bank, Cholapuram Branch, and this point is answered accordingly. _____ Page 7 of 10 https://www.mhc.tn.gov.in/judis

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OPERATIVE ORDER

ORDER: Allowed